10214-4
kbd: 12-07-2015

ORDINANCE NO. _557_____

AN ORDINANCE AMENDING ORDINANCE NO. 434 OF THE CITY OF RECTOR ARKANSAS REGULATING THE KEEPING OF SMALL FARM ANIMALS; AND DECLARING AN EMERGENCY THERETO

WHEREAS, the City Council has seen a developing need for individuals that want to procure a healthy lifestyle to be able to exercise such route; and

WHEREAS, the City Council understands this need and appreciates the varying degrees of offering the same to its citizens, as is allowed in similarly situated other towns in the State of Arkansas; and

WHEREAS, subject to the following limitations, the City Council wishes to amend Ordinance No. 434; and

NOW THEREFORE BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR ARKANSAS:

That the following shall be revised to Ordinance 434:

THEREFORE, That a resident of the City of Rector shall be allowed to keep fowl, goats, and sheep subject to the following restrictions. The City of Rector continues to restrict the keeping of hogs.

That the following shall be added to Ordinance 434:

SECTION 4: The keeping of such animals shall only be allowed for personal use and not for commercial use.

SECTION 5: Only residents who own and intend to place the animals on land that is no less than 2 contiguous acres, within the city limits, shall be allowed to apply for a permit.

SECTION 6: Each resident shall fill out an application for a permit with the City of Rector that includes the following information:

a) Name and Address
b) Location of Premises
c) Species
d) Number of Species
e) Method of disposing of animals manure or waste

f) Diagram showing dimensions and location of corral/pen/enclosure.

SECTION 7: That the City Superintendent shall have the right to determine the place and location of the enclosures on the property. A chicken coop shall not be allowed less than 75 feet within any neighboring dwelling and shall not be located in the resident's front yard area.

SECTION 8: Any interested resident shall fill out an application and pay a one-time application fee of $10.00 to recoup the costs. Application and site review will be conducted by the City Superintendant who shall determine whether the applicant meets the qualifications under this ordinance and shall determine placement of such enclosures and fencing and coup.

SECTION 9: At no such time, shall the permitted animals be allowed to run at large outside of a corral or fenced area.

SECTION 10: If a permit is issued, such permit can be suspended at any time if the animals become a nuisance. Upon the permit being suspended, landowner shall have 15 days to remove all animals as directed by City Superintendent.

SECTION 11: The approved resident shall be allowed to have no more than ten (10) fowl, per two acres of land, and no more than two (2) sheep or (2) goats per two acres of land. The maximum number of foul shall not exceed ten (10) and the maximum number of sheep or goats shall be two (2).

SECTION 12: Hogs shall be prohibited within the City of Rector Arkansas and subject to the penalties as set forth.

SECTION 13: All other parts of the ordinance shall remain in effect. No other provisions of the ordinance shall be amended or modified.

SECTION 14. An emergency is hereby declared to exist by the City Council of the City of Rector, Arkansas, and the passage of this Ordinance is necessary for the maintenance of the health, safety, and public peace of the citizens of Rector, Arkansas and this Ordinance shall be in full force and shall take affect immediately upon passage and publication.

DATED this 7th day of Dec, 2015.

CITY OF RECTOR, ARKANSAS

BY: Teresa L. Roofe
TERESA ROOFE, Mayor

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ATTEST

Sheila Dahl

City Clerk